

Saltmarsh Environmental Partners LLC

www.saltmarshenv.com

May 15, 2015

Sandra Little

Director of Operations

Dyer and Sons

Re: Wetland Delineation

Dear Ms. Little:

This letter sets out the terms on which we will delineate the wetland boundary on the parcel your firm intends to develop. We prepared it after the walk-through and the conversation that followed it, and it records the scope of the work, the schedule, and the terms we will work under. If it reads the way we agreed, please sign the enclosed copy where indicated and return it to this office. The countersigned copy is the agreement between us, and we will begin the work on May 25, 2015.

Scope of Services

We will walk the parcel and establish the wetland boundary where one exists, working to the 1987 Corps of Engineers Wetland Delineation Manual and the regional supplement that applies to this area. The boundary is determined at paired sample points, one inside the suspected wetland and one outside it, and at each point we record the three parameters the method rests on: hydrophytic vegetation, hydric soils, and wetland hydrology. Where the boundary runs, we flag it in the field so it can be seen on the ground and tied to a survey.

Once the line is walked and flagged, we will arrange for the flags to be located by a survey crew, so the boundary sits on a drawing rather than in the marsh alone. We will then prepare the delineation report and the figures that accompany it, and on your behalf we will submit the package to the Corps with a request for a jurisdictional determination. The report prepared for Dyer and Sons will state what was found at each sample point and the basis for the line we drew. Construction staking, permitting beyond the jurisdictional determination, and design of any crossing or fill are not part of this engagement.

Approach

We do not draw the line from a map. Someone walks it first, because a wetland edge is a judgment made on the ground against the three parameters, and the ground is where the parameters are read. Where an indicator is marginal, we say so and go back to resample it, and where the record is thin we will tell you that in plain terms. An honest hedge is what lets us stand behind the line when a reviewer questions it years from now, which is the moment the work is really for.

Personnel

John Sanchez, our Senior Scientist, will lead the technical work and write the report that carries the determination. Angela Williams and Mary Foster, both Field Technicians, will walk the parcel, flag the boundary, and record the sample points and the soils and sediment observations the report is built on. Among ourselves we go by first names, but the names you will see on anything sent to the agency are the full ones, because that is the record that lasts.

Schedule

We will begin on the date stated above and expect the fieldwork and reporting together to run roughly six months, allowing for the tide windows the field visits depend on. The pace of the agency's review after we submit is outside our hands, and we will not put a date on it. We will keep your office current as the work moves from the field to the report.

Fees and Payment

Our fee for the work described above is stated on the signature page and is executed there by counsel for both sides; it is not repeated in this letter. We invoice monthly for the work performed in the period and for the out-of-pocket costs the work requires, such as the survey crew and any laboratory analyses, and agency filing fees are passed through at cost. Invoices are due within thirty days of the date they are rendered.

Term and Termination

This agreement begins on May 25, 2015 and continues until the delineation report and the jurisdictional determination request have been delivered, unless it is ended sooner. Either of us may end it on written notice to the other. If the work is stopped before it is finished, you will owe us for the work performed and the costs incurred to the date the notice takes effect, and no more.

Confidentiality

We will keep the information you give us confidential and use it only for this engagement, with one plain exception you should understand going in. A delineation is prepared to be submitted, and once the report and its data go to the Corps they become part of a public agency record. We will not disclose your information otherwise without your consent, except where the law requires it.

Limitation of Liability

Our services will be performed with the care and skill ordinarily used by environmental professionals practicing in this area under similar conditions, and no other warranty, express or implied, is made. A delineation is our professional opinion of where the boundary lies, and it is subject to verification by the agency, which has the final say on jurisdiction. Our liability to you arising out of this engagement, from any cause, will not exceed the total fee payable under this agreement, and neither of us will be liable to the other for consequential or indirect damages.

Governing Law

This agreement is governed by the laws of the state in which the parcel is situated. It states the whole of our understanding on this work, replaces the discussions and correspondence that came before it, and may be changed only by a writing that both of us sign.

If this letter states our agreement correctly, please sign both copies where indicated, keep one for your file, and return the other to this office. Once the signed copy is in hand we will call to set the first field days around the tides. We are glad to be working with Dyer and Sons on this, and we will give the parcel the same care we give the reports that follow from it.

Very truly yours,

Fixed professional fee, as executed: \$94,500

Angela Flynn

Managing Principal

Date: May 15, 2015

Sandra Little

Director of Operations, Dyer and Sons

Date: May 15, 2015